

BARRETT, J., concurring in part

allegations involving the President’s official conduct.² Some of those allegations raise unsettled questions about the scope of Article II power, see *ante*, at 621–628, but others do not. For example, the indictment alleges that the President “asked the Arizona House Speaker to call the legislature into session to hold a hearing” about election fraud claims. App. 193. The President has no authority over state legislatures or their leadership, so it is hard to see how prosecuting him for crimes committed when dealing with the Arizona House Speaker would unconstitutionally intrude on executive power.

This two-step analysis—considering first whether the statute applies and then whether its application to the particular facts is constitutional—is similar to the approach that the Special Counsel presses in this Court. Brief for United States 24–30. It is also our usual approach to considering the validity of statutes in situations raising a constitutional question. See, e.g., *Seila Law LLC v. Consumer Financial Protection Bureau*, 591 U. S. 197, 213, 229 (2020).³ An im-

²This analysis is unnecessary for allegations involving the President’s private conduct because the Constitution offers no protection from prosecution of acts taken in a private capacity. *Ante*, at 615. Sorting private from official conduct sometimes will be difficult—but not always. Take the President’s alleged attempt to organize alternative slates of electors. See, e.g., App. 208. In my view, that conduct is private and therefore not entitled to protection. See *post*, at 682–683 (SOTOMAYOR, J., dissenting). The Constitution vests power to appoint Presidential electors in the States. Art. II, § 1, cl. 2; see also *Chiafalo v. Washington*, 591 U. S. 578, 588–589 (2020). And while Congress has a limited role in that process, see Art. II, § 1, cls. 3–4, the President has none. In short, a President has no legal authority—and thus no official capacity—to influence how the States appoint their electors. I see no plausible argument for barring prosecution of that alleged conduct.

³The Court has sometimes applied an avoidance canon when interpreting a statute that would interfere with the President’s prerogatives. See, e.g., *Franklin v. Massachusetts*, 505 U. S. 788, 800–801 (1992); *Public Citizen v. Dept. of Justice*, 491 U. S. 440, 465–467 (1989); see also *Sale v. Haitian Centers Council, Inc.*, 509 U. S. 155, 188 (1993). The Office of Legal